

Inserted at the request of Joanne Cullinane, pct 21, and Larry Slotnick, pct 7

https://youtube.com/clip/Ugkx8LWikYKyEBIVF-KUJmtAhtrUj6P4hu_3?si=osYcEICkHFkxefWt

This clip is from the ARB's final hearing on Article 12, in 2023, in which all of the terms of the MBTA act overlay were reviewed for a final time, and agreed upon in a unanimous 4-0 vote. This was at a public hearing at Town Hall on October 2, 2023 and this is the only part of the evening when the Board addressed the commercial bonus rule.

The context was that they were reviewing whether 60% was a *high enough* percentage of the ground floor to require for a commercial bonus in the overlay because it was stated that the Chamber of Commerce had just written to them asking that the ground floor percentage be higher and that second floor commercial be incentivized as well. The Chamber's position was that 60% of the ground floor would in most cases yield spaces that are too small.

The CEO of Utile was asked to explain why 60% was optimal, per his company's recommendation, and he explained that it worked on buildings with both large and small 'Footprints' (i.e. whether the Footprint of the building was 10,000 square feet or 2000 square feet). He described not just the percentage but the methodology under which this percentage was to be applied.

Link to full video available within this YouTube screen for full viewing.